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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
12/02/2024
Clerk of the Court
BY: SUMAIRA OLLA
Deputy Clerk

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO

ZIAO WANG,

Plaintiff,

vs.

TESLA, INC.; and DOES 1 through 30,
inclusive,

Defendants.

Case No.

CGC-24-620198

**COMPLAINT FOR DAMAGES,
RESTITUTION, RESCISSION, AND
EQUITABLE RELIEF FOR:**

**(1) BREACH OF EXPRESS
WARRANTY, CIVIL CODE §1790,
ET SEQ.; AND**

**(2) BREACH OF IMPLIED WARRANTY
OF MERCHANTABILITY, CIVIL
CODE §1790, ET SEQ.**

Unlimited Civil Case

JURY TRIAL DEMANDED

INTRODUCTION

1. Plaintiff ZIAO WANG (“Plaintiff”) brings this action as an individual for statutory breach of warranty against Defendants TESLA, INC. (hereinafter “TESLA”), and DOES 1 through 30, under California’s Song-Beverly Consumer Warranty Act, arising from the purchase of a new, but defective, 2022 Tesla Model X, VIN: 7SAXCBE51NF328917 (hereinafter the “vehicle”). On information and belief, Plaintiff alleges the following:

PARTIES

2. Plaintiff ZIAO WANG is an individual over the age of 18 years. At all relevant times herein, ZIAO WANG is and was a resident of the state of California, County of San Francisco.

1 3. Defendant TESLA is, and at all times relevant herein was, a corporation qualified to do
2 business and conducting business in the State of California, including the County of San
3 Francisco. TESLA was and is the manufacturer, distributor, and/or warrantor of the vehicle.

4 **DOE DEFENDANTS**

5 4. Plaintiff does not know the true names and capacities, whether corporate, partnership,
6 associate, individual or otherwise, of defendants sued herein as DOES 1 through 30, inclusive,
7 pursuant to §474 of the California Code of Civil Procedure. Plaintiff is informed and believes and
8 thereupon alleges that defendants DOES 1 through 30, inclusive, are in some manner responsible
9 for the acts, occurrences and transactions set forth herein and are legally liable to Plaintiff.
10 Plaintiff will seek leave to amend this complaint to set forth the true names and capacities of said
11 fictitiously-named defendants, together with appropriate charging allegations, when ascertained.

12 **AGENCY AND ALTER EGO**

13 5. At all times mentioned herein each defendant, whether actually or fictitiously named
14 herein, was the principal, agent (actual or ostensible), or employee of each other defendant and in
15 acting as such principal or within the course and scope of such employment or agency, took some
16 part in the acts and omissions hereinafter set forth, by reason of which each defendant is liable to
17 Plaintiff for the relief prayed for herein.

18 **JURISDICTION AND VENUE**

19 6. Venue is proper in San Francisco County because Defendant TESLA conducts substantial
20 business in San Francisco County, because Plaintiff is a San Francisco County resident, and
21 because substantial repairs to the vehicle occurred in San Francisco County.

22 7. This Court has jurisdiction over Plaintiff's claims because Plaintiff is a resident of
23 California and because Defendant TESLA is qualified to do business and California and regularly
24 conducts business in California. Furthermore, the acts and omissions complained of occurred in
25 California.

26 **OPERATIVE FACTS**

27 8. On or about January 15, 2022, Plaintiff purchased the vehicle from TESLA in California.
28 The vehicle's purchase price was \$126,217.91. The vehicle was purchased and used primarily for

1 personal use.

2 9. All owners of new TESLA vehicles, including the vehicle, receive express warranties
3 from Defendant TESLA.

4 10. TESLA's basic warranty covered any repairs or replacements needed during the warranty
5 period due to defects in factory materials or workmanship. Any required adjustments would also
6 be made during the basic coverage period. All warranty repairs and adjustments, including parts
7 and labor, were to be made at no charge. Additional warranties were set forth in the warranty
8 booklet and are incorporated herein by reference as though fully set forth.

9 11. In fact, when delivered, the vehicle was defective in materials and workmanship, such
10 defects being discovered within the first month and first 600 miles of use. The defective
11 conditions Plaintiff experienced with the vehicle include, but are not limited to:

- 12 (a) Drive side falcon wing door shows red alert;
- 13 (b) Third row seats are not installed properly;
- 14 (c) Scratches on the rubber part of the falcon wing door;
- 15 (d) Scratch near passenger headlight;
- 16 (e) Falcon wing door does not open when side button of the key fob is pressed;
- 17 (f) Parking brake function degraded;
- 18 (g) Driver door panel does not align;
- 19 (h) Rear passenger upper door trim does not align with the rear quarter
20 brightwork;
- 21 (i) Locking feature does not work on the key fob;
- 22 (j) Falcon door showing a red alert again;
- 23 (k) Old key fobs malfunctioning;
- 24 (l) Defective front row curtain airbags;
- 25 (m) Falcon door on the right side of car door won't close;
- 26 (n) The left falcon door no longer opens;

27 12. Plaintiff has returned the vehicle to TESLA authorized repair facilities for warranty repair
28 on no fewer than 4 occasions. Since purchase, Plaintiff has been without the vehicle due to it

1 being out of service for repair for no fewer than 15 calendar days.

2 13. The vehicle was in repair facilities for an unreasonable period of time and for an
3 unreasonable number of times. Despite the prolonged period during which TESLA and its
4 authorized repair facilities were given the opportunity to repair the vehicle, many of the more
5 significant conditions were not repaired.

6 14. The defects experienced by Plaintiff with the vehicle substantially impair its use, value,
7 or safety to Plaintiff. Despite Plaintiff's efforts to allow TESLA authorized repair facilities the
8 opportunity to repair the vehicle, many nonconforming and defective conditions were never
9 repaired. The vehicle continues to this day to exhibit the more significant defective conditions
10 described above.

11 15. Plaintiff contacted TESLA directly on October 26, 2024 to ask TESLA to repurchase the
12 defective vehicle. To date, TESLA has not responded.

13 16. Plaintiff had no choice but to bring this lawsuit.

14 **FIRST CAUSE OF ACTION**
15 **(Breach of Express Warranty in Violation of Civil Code § 1790, *et seq.*)**
16 **(Against TESLA and Applicable DOES)**

17 17. Plaintiff realleges and incorporates by reference as though fully set forth herein each and
18 every allegation contained in the paragraphs above.

19 18. The vehicle is a "New Motor Vehicle" as defined in Civil Code §1793.22(e)(2).

20 19. TESLA is a "manufacturer" as defined in Civil Code §1791(j). Plaintiff is informed and
21 believes and thereupon alleges that Defendant TESLA is the warrantor and thus obligated to
22 comply with Civil Code §1791, *et seq.*, pursuant to Civil Code §1795.

23 20. Plaintiff's acquisition of the vehicle was accompanied by express factory warranties
24 offered by Defendant TESLA to Plaintiff.

25 21. The express warranties described and incorporated herein by reference are each an
26 "express warranty" as defined in Civil Code §1791.2(a)(1).

27 22. TESLA's express warranties covered any repairs or replacements needed during the
28 warranty period due to defects in factory materials or workmanship. Any required adjustments or
repairs would also be made during the basic coverage period. All warranty repairs and

1 adjustments, including parts and labor, were to be made at no charge. Additional warranties were
2 set forth in the warranty booklet, and are incorporated herein by reference as though fully set
3 forth.

4 23. In fact, when delivered to Plaintiff, the vehicle was defective in materials and
5 workmanship, such defects being described above and discovered within the warranty periods.

6 24. Plaintiff was without the vehicle due to it being out of service for repair, by authorized
7 TESLA servicing dealerships and/or their agents, on no fewer than 4 occasions and has been
8 without the vehicle for no fewer than 15 days, all within the warranty period. Despite the number
9 of times and days TESLA was given the opportunity to repair the vehicle, TESLA failed to repair
10 the vehicle so as to bring it into conformity with the warranties set forth herein.

11 25. The defects experienced by Plaintiff with the vehicle substantially impair its use, value,
12 or safety to Plaintiff. Despite Plaintiff's repeated efforts to allow TESLA the opportunity to repair
13 the vehicle, many nonconforming and defective conditions were never repaired, and Plaintiff has
14 lost confidence in the vehicle.

15 26. As a direct and proximate result of Defendants' violation of their obligations under the
16 Song-Beverly Consumer Warranty Act, Plaintiff has suffered actual, consequential, and
17 incidental damages, including but not limited to money expended on the purchase of the vehicle,
18 the loss of use of the vehicle during the time it has been in for repair, other incidental and
19 consequential damages, and attorneys' fees, which Plaintiff has incurred and will continue to
20 incur in order to protect his rights in this matter.

21 27. As a direct and proximate result of TESLA's willful violation of its obligations under the
22 Song-Beverly Consumer Warranty Act, Plaintiff is entitled to have TESLA either replace the
23 goods or reimburse Plaintiff. Plaintiff has the choice to elect either option, pursuant to Civil Code
24 §1793.2(d)(2).

25 28. As a direct and proximate result of TESLA's willful violation of its obligations under the
26 Song-Beverly Consumer Warranty Act, Civil Code §1794(c), Plaintiff is entitled to a civil penalty
27 of two times actual damages.

28 29. Pursuant to Civil Code §1794(d), Plaintiff is entitled to recover a sum equal to the

1 aggregate amount of costs and expenses, including attorneys' fees. As a proximate result of
2 TESLA's misconduct as alleged herein, and in an effort to protect his rights, Plaintiff has incurred
3 and will continue to incur legal fees, costs, and expenses in connection therewith.

4 WHEREFORE, Plaintiff prays for judgment as hereinafter set forth.

5 **SECOND CAUSE OF ACTION**
6 **(Breach of Implied Warranty of Merchantability in Violation of Civil Code § 1790, *et seq.*)**
7 **(Against TESLA and Applicable DOES)**

8 30. Plaintiff realleges and incorporates by reference as though fully set forth herein each and
9 every allegation contained in the paragraphs above.

10 31. The vehicle is a "consumer good" as defined in Civil Code §1791(a). Defendant TESLA
11 is a "manufacturer" as defined in Civil Code §1791(j) and a "distributor" as defined in Civil Code
12 §1791(e). Plaintiff is informed and believes, and thereupon alleges, that Defendant TESLA is the
13 warrantor of the vehicle and thus obligated to comply with Civil Code §1791, *et seq.*

14 32. The express warranties described and incorporated herein by reference are each an
15 "express warranty" as defined in Civil Code §1791.2(a)(1).

16 33. Plaintiff's purchase of the vehicle was accompanied by a factory express warranty offered
17 by Defendant TESLA and extending to Plaintiff.

18 34. The vehicle sold to Plaintiff contained an implied warranty of merchantability running
19 from Defendant to Plaintiff pursuant to Civil Code §1792. Defendant cannot disclaim implied
20 warranties.

21 35. The duration of the implied warranty of merchantability is coextensive in duration with the
22 express warranties which accompanied the purchase of the vehicle pursuant to Civil Code
23 §1791.1(c).

24 36. Plaintiff purchased the vehicle with the reasonable expectation that the vehicle was fit to
25 be used for the ordinary and intended purpose of providing Plaintiff with reliable and safe
26 transportation. Defendant TESLA knew, when it was manufactured, sold, and warranted, that the
27 intended and ordinary purpose of the vehicle was to provide the user with safe and reliable
28 transportation.

37. At all times that Plaintiff had possession of the vehicle, Plaintiff used it for the intended

1 and ordinary purpose of transportation. However, the vehicle was not fit for the ordinary purposes
2 for which it was sold. It was, in fact, defective, as set forth above, and not fit to provide Plaintiff
3 with safe or reliable transportation.

4 38. As a direct and legal result of Defendant TESLA and its repair agents' violation of their
5 obligations under the Song-Beverly Consumer Warranty Act, Plaintiff has suffered actual,
6 consequential, and incidental damages, including but not limited to money expended on the
7 purchase of the vehicle, the loss of the use of the vehicle during the time it has been inoperable
8 or otherwise out of service for repairs, the cost of repairs related to these defects, and attorneys'
9 fees which Plaintiff has incurred and will continue to incur in order to protect his rights in this
10 matter. The precise amount of these damages is unknown at the present time. Attorneys' fees,
11 loss of use, interest, and other damages continue to accrue. Pursuant to Civil Code §1791.1(d),
12 Plaintiff is entitled to the remedies set forth in Civil Code §1794.

13 39. Pursuant to Civil Code §1794(d), Plaintiff is entitled to recover a sum equal to the aggregate
14 amount of costs and expenses, including attorneys' fees. As a legal result of Defendants' misconduct
15 as alleged herein, and in an effort to protect his rights, Plaintiff has incurred and will continue to
16 incur legal fees, costs, and expenses in connection therewith.

17 WHEREFORE, Plaintiff prays for relief as hereinafter set forth.

18 **PRAYER**

19 WHEREFORE, Plaintiff prays for judgment as follows:

- 20 (1) For actual damages in excess of the jurisdictional minimum of this Court;
21 (2) For restitution in the form of reimbursement pursuant to Civil Code §1794(b) and
22 §1793.2(d);
23 (3) For civil penalty pursuant to Civil Code §1794(c) in an amount twice that of the actual
24 damages;
25 (4) For incidental damages;
26 (5) For consequential damages;
27 (6) For prejudgment interest at the maximum legal rate;
28 (7) For attorneys' fees, expenses, and costs of suit incurred herein; and

1 (8) For such other and further relief as the Court deems just and proper under the
2 circumstances.

3 Dated: December 2, 2024

CONN LAW, PC

4
5 By:



ELLIOT CONN
KIRA PATTERSON
Attorneys for Plaintiff ZIAO WANG

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JURY TRIAL DEMANDED

Plaintiff demands a trial by jury on all issues so triable.

Dated: December 2, 2024

CONN LAW, PC

By:



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